

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 17, 2026, AT 8:30 A.M.

- Twila Gainer: \$25,672,273.04
- Breanna Gainer: \$8,865,929.88
- Nicholas Gainer: \$8,865,929.88

Therefore, judgment shall be entered against defendant in the amount of \$178,845,995.80. The court additionally awards plaintiffs post judgment interest at the legal rate of 10% per annum from the date of judgment until paid in full.

13. S-CV-0053861 MELTZER, BONNIE v. ROSEVILLE THEATRE ARTS

The motion to compel further deposition is dropped from calendar as no moving papers were filed with the court.

14. S-CV-0054301 LUZZI, JOHN v. LANE, KIMBERLY

The motion for partition instructions is continued to October 15, 2026, at 8:30 a.m. in Department 3.

15. S-CV-0055230 FROLOV ENTERPRISES v. YURTAEV, NIKOLAY

The motion for summary judgment is dropped from calendar as no moving papers were filed with the court.

16. S-CV-0056720 HOLDEN, BREANN v. THE ARC OF PLACER COUNTY

Defendant's Demurrer to Plaintiff's First Amended Complaint

Preliminary Matters

The court observes defendant did not timely file their demurrer as required by Code of Civil Procedure section 1005, subdivision (b). However, this defect was waived by plaintiff opposing the merits of defendant's demurrer. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Nonetheless, the court admonishes defendant to timely file their papers for future filings.

Defendant's requests for judicial notice are granted.

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Ruling on Demurrer

Defendant demurs to the second cause of action for retaliation in violation of Government Code §§ 12940 et seq and third cause of action for failure to prevent discrimination and retaliation in violation of Government Code § 12940(k) in plaintiff's first amended complaint ("FAC") on the grounds the complaint does not allege facts sufficient to state the challenged causes of action. A demurrer tests the legal sufficiency of the pleading, not the truth of the plaintiff's allegations or accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleading are deemed to be true no matter how improbable the allegations may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, "[i]f the allegations in the complaint conflict with the exhibits, we rely on and accept as true the contents of the exhibits." (*SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68, 83.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Genesis Environment Services v. San Joaquin Valley Unified Air Pollution Control District* (2003) 113 Cal.App.4th 597, 603.)

Second Cause of Action—Retaliation in Violation of Government Code §§ 12940 et seq

To establish a retaliation cause of action, "a plaintiff must show (1) he or she engaged in a "protected activity," (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) Protected activity "takes the form of opposing any practices forbidden by FEHA or participating in any proceeding conducted by the DFEH or the Fair Employment and Housing Council (FEHC)." (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 380.) It may also include "evidence an employer believed the plaintiff was a potential witness in another employee's FEHA action." (*Rope v. Auto-Chlor System of Washington, Inc.* (2013) 220 Cal.App.4th 635, 652, fn. 11; *see also Steele v. Youthful Offender Parole Bd.* (2008) 162 Cal.App.4th 1241, 1252–60.) However, requesting a reasonable accommodation does not constitute protected activity. (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 380.)

Here, when taking the factual allegations in the FAC as true, plaintiff does not allege facts sufficient to state the second cause of action for retaliation in violation of Government Code §§ 12940 et seq. Accordingly, the demurrer is sustained with leave to amend as to the second cause of action.

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Third Cause of Action—Failure to Prevent Discrimination and
Retaliation in Violation of Government Code § 12940(k)

“To state a prima facie case of failure to prevent discrimination or harassment, a plaintiff must allege and show that (i) plaintiff was subjected to discrimination, harassment or retaliation, (ii) which defendant failed to take all reasonable steps prevent, and (iii) which caused plaintiff harm.” (*Ayala v. Frito Lay, Inc.* (E.D. Cal. 2017) 263 F.Supp.3d 891, 905; Gov. Code, § 12940, subd. (k).)

Here, when taking the factual allegations in the FAC as true, plaintiff alleges facts sufficient to state the third cause of action for failure to prevent discrimination and retaliation in violation of Government Code § 12940(k). Accordingly, the demurrer is overruled as to the third cause of action.

In sum, the demurrer is sustained with leave to amend as to the second cause of action and overruled as to the third cause of action.

Defendant’s Motion to Strike Portions of Plaintiff’s First Amended Complaint

Preliminary Matters

The court observes defendant did not timely file their motion to strike as required by Code of Civil Procedure section 1005, subdivision (b). However, this defect was waived by plaintiff opposing the merits of defendant’s motion to strike. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Nonetheless, the court admonishes defendant to timely file their papers for future filings.

Defendant’s requests for judicial notice are granted.

Ruling on Motion

Defendant moves to strike the following in the first amended complaint (“FAC”) on the grounds the complaint does not allege a basis for such allegations or relief. (Code Civ. Proc. §§ 435, 436.):

- References to retaliation, engagement in protected activity, and failure to prevent retaliation in Paragraph 19;
- Paragraph 24 in its entirety;
- Paragraph 34 in its entirety;
- Paragraph 39 in its entirety;
- Paragraph 41 in its entirety;

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- Paragraphs 42-44 in their entirety;
- Paragraph 45 in its entirety;
- Paragraph 46 in its entirety;
- Paragraph 47 in its entirety;
- Paragraph 49 in its entirety;
- Paragraph 50 in its entirety;
- Paragraph 51 in its entirety;
- Paragraph 52 in its entirety;
- Paragraph 53 in its entirety;
- Page 10, Prayer for relief No. 5: “For punitive damages, pursuant to Civil Code §§3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Corporate employers can be held liable for punitive damages based on the acts of the employee when “the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at § 3294, subd. (b).)

Defendant’s motion is granted in part with leave to amend as to:

- References to retaliation, engagement in protected activity, and failure to prevent retaliation in Paragraph 19;
- Paragraph 24 in its entirety;
- Paragraph 34 in its entirety;
- Paragraph 46 in its entirety;
- Paragraph 49 only as to references to retaliation;
- Paragraph 52 in its entirety; and

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- Page 10, Prayer for relief No. 5: “For punitive damages, pursuant to Civil Code §§3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Defendant’s motion is denied in part as to the remainder of the challenged paragraphs.

Plaintiff shall file and serve an amended complaint on or before **September 28, 2026**.

17. S-CV-0057201 WEBER, ANNE v. WELLS FARGO BANK

The demurrer is dropped from calendar as moot in light of plaintiff filing a first amended complaint with the court.

18. S-CV-0057330 IN RE THE PETITION OF VARDANYAN, SARA

Petition for Approval of Minor’s Compromise Claim

The petition for approval of minor’s compromise claim is granted. After careful consideration of the petition, attachments, and supplemental declaration, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

19. S-CV-0057381 GREENHOUSE, GISELA v. MOLLENKOPF, KRISTINE

Defendant’s Special Motion to Strike Plaintiff Gisela Maria Greenhouse’s Complaint Pursuant to C.C.P. § 425.16 (Anti-SLAPP Motion)

Defendant moves to strike the lone cause of action for “Intentional Tort” alleged in plaintiff’s complaint pursuant to Code of Civil Procedure section 425.16.

A motion brought under Code of Civil Procedure section 425.16, also known as an anti-SLAPP motion, is a procedural remedy designed to dispose of lawsuits that are brought primarily to chill the valid exercise of a party’s constitutional right of petition or free speech. (Code Civ. Proc. § 425.16(a); see also *Sylmar Air Conditioning v. Pueblo Contracting Svcs., Inc.* (2004) 122 Cal.App.4th 1049, 1055-1056.) In determining whether an action or claim is a SLAPP suit subject to a special motion to strike, the court evaluates first whether the claim arises out of the defendant’s protected speech or petitioning activity, and second whether plaintiff can